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Attorney for: STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY

ELECTRONICALLY

FILED

Superior Court of California,
County of San Francisco

12/02/2024

Clerk of the Court

BY: SUMAIRA OLLA

Deputy Clerk

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN FRANCISCO

STATE FARM MUTUAL AUTOMOBILE
INSURANCE COMPANY;

Plaintiff,

vs.

JOSHUA DOLPH GRAVES;

Does 1 to 10, inclusive,

Defendants.

Case No:

CGC-24-620196

**COMPLAINT FOR PROPERTY
DAMAGES**

[LIMITED CIVIL CASE]

AMOUNT OF DEMAND:
\$7,986.51

PLAINTIFF ALLEGES AGAINST DEFENDANTS JOSHUA DOLPH GRAVES AND
DOES 1 TO 10, INCLUSIVE, AS FOLLOWS:

PRELIMINARY ALLEGATIONS

1. That at all times mentioned herein and material hereto, Plaintiff was and is a corporation, entered, authorized and licensed to do, and is doing business in the State of California as an insurance company.

2. The true names or capacities, whether individual, corporate, associate or otherwise, of Defendants named herein as Does 1 to 10, inclusive, are unknown to Plaintiff who therefore sues said Defendant by such fictitious names and Plaintiff will amend this complaint to show their names and capacities when same have been ascertained.

1 3. At all times mentioned herein and material hereto, Defendants Does 1 to 10, inclusive,
2 were the agents, servants, and employees of the named Defendants, and were acting within the
3 course and scope of their authority as such agents, servants and employees and with the permission
4 and consent of the named Defendants.

5 4. At all times mentioned herein and material hereto, Defendants Does 1 to 10, inclusive,
6 were operating and driving the vehicle hereinafter described with the permission and consent of the
7 named Defendants.

8 **AUTOMOBILE NEGLIGENCE AND LIABILITY**

9 5. At all times mentioned herein and material hereto, certain property located in the above-
10 captioned judicial district and county was owned by Joshua Weinberg hereinafter referred to as
11 INSURED. Said property is more specifically described as a 2023 Tesla Model 3 with California
12 license plate #9HMJ987.

13 6. At all times mentioned herein and material hereto, Defendant, Joshua Dolph Graves, and
14 each of them were the owners and/or drivers of a certain motor vehicle described as a 2006 Nissan
15 Frontier with California license plate #4CSM346.

16 7. That on or about March 28, 2024, Defendants and each of them, so negligently and
17 carelessly drove, maintained, owned, managed, entrusted and operated the aforementioned vehicle,
18 at and about Interstate 280, near 6th Street, in San Francisco, California 94103, so as to cause said
19 vehicle to collide with said INSURED's property, proximately causing the damages hereinafter
20 described.

21 8. That as a direct and proximate result of said negligence and carelessness, said
22 INSURED's property was damaged in the total sum of \$7,986.51.

23 9. That prior to the aforementioned date, Plaintiff issued to said INSURED its policy of
24 insurance, and did, pursuant to the terms and conditions of said policy, pay to said INSURED, the
25 sum hereinabove stated (less the deductible); and did thereby become subrogated to all of the rights
26 of said INSURED against the Defendants and each of them, to the extent of said rights, including
27 assignment of the INSURED's deductible.

10. Defendants and each of them knew or had reason to know their conduct caused the damages to Plaintiff's insured's vehicle on the date of loss. Defendants failed to pay Plaintiff the full amount of the damages sustained by its insured.

PRAAYER

WHEREFORE, Plaintiff prays for judgment against the Defendants and each of them, as follows:

1. For property damages in the sum of \$7,986.51;
2. For costs of suit incurred herein;
3. For interest at the legal rate from March 28, 2024;
4. For such other and further relief as this Court deems just and proper.

Date: November 21, 2024

Joseph M. Pleasant, Esq.
BENSON LEGAL, APC
Attorney for Plaintiff